



MCS/5/1/1605

17th May 2023

M/s Xtranet Communications Limited
P.O. Box 27346-00100
NAIROBI

Dear Sir/Madam,

RE: TENDER NO. KPA/027/2022-23/ICT – PROVISION OF INTERNET & WIDE AREA NETWORK SERVICES FOR PORT OF LAMU – M/S XTRANET COMMUNICATIONS LIMITED

Enclosed herewith, kindly find a copy of the above original contract document for your records and safekeeping.

Yours faithfully,

Robert Warui
MANAGER CONTRACTS & CONVEYANCING
For: MANAGING DIRECTOR
Encls...

Copy to: General Manager Finance & Commercial Services
MOMBASA

Attached herewith, find a copy of the original contract document for purposes of effecting payment.

Robert Warui
MANAGER CONTRACTS & CONVEYANCING
For: CORPORATION SECRETARY & GENERAL MANAGER LEGAL SERVICES
Encls...

Kenya Ports Authority

P.O. Box 95009 - 80104 Mombasa, Kenya

Tel: +254 41 2112999 / 2113999

Mobile: +254 709 092999 / 709 093999 / 730 653999

ISDN (041) 2112999 / 2113999 KEBS ISO 9001 Certified Org. No. 087 | KPA: 5023801017

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Kenya

CONTRACT
TENDER NO.KPA/027/2022-23/ICT

THIS AGREEMENT made this ^{15th} Day of ^{May} 2023 between **KENYA PORTS AUTHORITY** a body corporate duly established under Kenya Ports Authority Act (Cap. 391) Laws of Kenya of P.O. Box 95009-80104 Mombasa (hereinafter called the "Authority") of the one part and **M/S. XTRANET COMMUNICATIONS LIMITED** a company incorporated under the Companies Act Laws of Kenya, of P.O. Box 27346-00100 Nairobi (hereinafter called "the Service Provider") of the other part.

WHEREAS The Authority invited Tenders for **PROVISION OF INTERNET AND WIDE AREA NETWORK SERVICES FOR PORT OF LAMU** as per the Schedule of Requirements.

AND WHEREAS The Authority accepted the offer by the Service Provider for **PROVISION OF INTERNET AND WIDE AREA NETWORK SERVICES FOR PORT OF LAMU TENDER NO. KPA/027/2022-23/ICT** (hereinafter called the "Services") including remedying any defects at **the Cumulative price of KES 10,799,840.72 (Kenya Shillings Ten Million Seven Hundred and Ninety Nine Thousand Eight Hundred and Forty Shillings and Seventy Two Cents only)** inclusive of VAT (herein after called "Contract Price"), for a contract period of three years(hereinafter referred to as the contract period) from the date of Contract Signing.

The cumulative Contract Price shall be payable as detailed below;

- a) One-off Installation cost **at KES 5,444,000.00 (Kenya Shillings Five Million Four Hundred and Forty Four Thousand Only)**
- b) Recurrent and Support Services at the price of **(KES 1,785,280.24 (Kenya Shillings One Million Seven Hundred and Eighty-Five Thousand Two Hundred and Eighty Shillings and Twenty Four Cents) annually translating to KES 5,355,840.72 (Kenya Shillings Five Million Three Hundred and Fifty Five Thousand Eight Hundred and Forty Shillings and Seventy Two Cents)**

NOW THIS CONTRACT WITNESSETH as follows: -

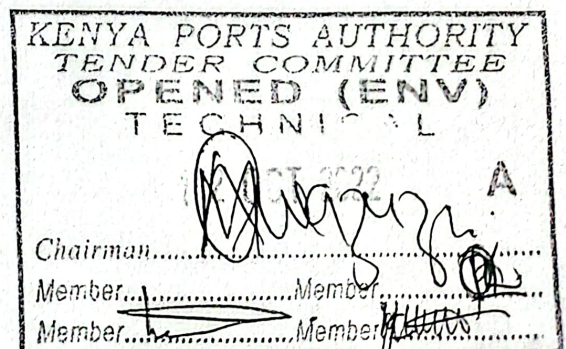
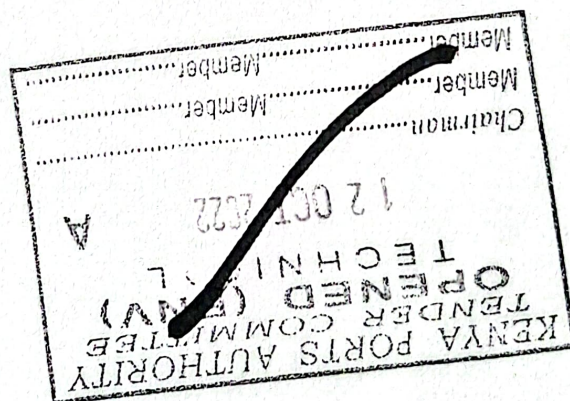
1. The Service Provider shall during the contract period of three years provide internet and wide area network services for port of Lamu and offer Support and recurrent services, to the Authority and the Authority shall subject to the terms set out in the **SCC** herein pay for the services required by the Authority as per the rates provided for in Appendix D.

1. The Priced Schedules - (MANDATORY)

Currencies in accordance with ITT 15 Recurrent Costs for the Services						Date: 12TH OCTOBER 2022 ITT No: KPA/027/2022-23/ICT Alternative No: N/A Page N°	
Service No.	Item Description	Country of Origin	Delivery Date	Physical Unit	Qty	Unit Recurrent Price	Total Price
1.	Internet connection service	KENYA	Immediately after Contract Signing	Mb/s	50	64,200.00	770,400.00
2.	WAN/MPLS connection service	KENYA	Immediately after Contract Signing	Mb/s	20	29,700.00	356,400.00
3.	Backhaul Link	KENYA	Immediately after Contract Signing	Mb/s	20	29,700.00	356,400.00
4.	Stakeholders WiFi	KENYA	Immediately after Contract Signing	No.	5	60,416.05	302,080.24
Total Annual Recurrent Price							1,785,280.24
Total 3-year Recurrent Price							5,355,840.72
One-off installation (non-recurrent) cost							5,444,000.00
Total Tender Price (3-year Recurrent price plus one-off installation cost)							10,799,840.72

Note: The one-off cost MUST include the WAN router to be supplied.

Name of tenderer [XTRANET COMMUNICATIONS LTD] Signature of tenderer [] Date [12TH OCTOBER 2022]



XTRANET COMMUNICATIONS
LIMITED
P. O. Box 27346 - 00100,
NAIROBI - KENYA.

HE(HENRY CHEGE)

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